

DECISIONS · 26 OCT 2001

Antibes Commercial Court judgment — SARL B & O

TYPE	COURT	DATE	PARTIES
Court decision	The Antibes Commercial Court	26 Oct 2001	From the franchisee's companies

SUMMARY SHEET

Compulsory liquidation judgment — Antibes Commercial Court · 26 October 2001

Overview: judgment of the first chamber of the Antibes Commercial Court opening insolvency proceedings against SARL B et O (food service business, quartier des Combes, route de Grasse in Antibes), of which Bernard Collorafi is the manager.

Key points

On 23 October 2001, Bernard Collorafi, in his capacity as manager, filed the declaration of cessation of payments of SARL B et O. At the hearing, it emerges from the information provided that the recovery of the business is manifestly impossible; the applicant requests compulsory liquidation. Ruling by judgment after hearing both parties and at first instance, having regard to article L 622-1 of the Commercial Code, the Court:

- records the cessation of payments and opens compulsory liquidation proceedings;
- provisionally sets the date of cessation of payments at 26 April 2000;
- appoints Mr Salon as supervising judge (substitute Mrs Petit);
- appoints Maître Gilles Gauthier, in Valbonne, as liquidator.

The judgment orders the inventory of the assets, the filing of the list of claims within ten months and the mandatory publications. The costs are treated as preferential expenses.

Significance

This decision marks the legal disappearance of one of Bernard Collorafi's operating companies, a few years after the termination of the lease-management agreements (location-gérance) at issue between the franchisee and McDonald's.

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Source: bernardcollorafi.org/en/documents/judgment-antibes-commercial-court-compulsory-liquidation-sarl-b-et-o-2001/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.